

maintenance of copy thereof at each station where goods are received for carriage and make it available for reference of any person without payment of any fee.

63. Provision of risk rates.- (1) Where any goods are entrusted to a railway administration for carriage, such carriage shall except where owner's risk rate is applicable in respect of such goods, be at railway risk rate.

(2) Any goods for which owner's risk rate and railway risk rate are in force, may be entrusted for carriage at either of the rates and if no rate is opted, the goods shall be deemed to have been entrusted at owner's risk rate.

Comment

Section 63 provides for risk rates at which goods may be entrusted to railway for carriage.

64. Forwarding note.- (1) Every person entrusting any goods to a railway administration for carriage shall execute a forwarding note in such form as may be specified by the Central Government:

Provided that no forwarding note shall be executed in the case of such goods as may be prescribed.

(2) The consignor shall be responsible for the correctness of the particulars furnished by him in the forwarding note.

(3) The consignor shall identify the railway administration against any damage suffered by if reason of the incorrectness of incompleteness of the particulars in the forwarding note.

Comments

Section 64 provides for execution of a forwarding note by a person entrusting goods for carriage by railway.

65. Railway receipt. – (1) A railway administration shall, -

- (a) in a case where the goods are to be loaded by a person entrusting such goods, on the completion of such loading ; or
- (b) in any other case, on the acceptance of the goods by it, issue a railway receipt in such form as may be specified by the Central Government.

(2) A railway receipt shall be prima facie evidence of the weight and the number of packages stated therein :

Provided that in the case of a consignment in wagon-load or train – load and the weight or the number of packages is not checked by a railway servant authorized in this behalf, and a statement to that effect is recorded in such railway receipt by him, the burden of proving the weight or, as the case may be, the number of packages stated therein, shall lie on the consignor, the consignee or the endorsee.

Comments

Section 65, sub-clause (1) imposes an obligation on railway administration issue railway receipt for the goods entrusted to it.

Sub-clause (2) lays down the circumstance under which the railway administration shall not be responsible for correctness of weight description or classification or number of packages mentioned in railway receipt.

66. Powers to require statement relating to the description of goods. – (1) The owner or a person having charge of any goods which are brought upon a railway for the purposes of carriage by railway, and the consignee or the endorsee of any consignment shall, on the request of any railway servant authorized in this behalf, deliver to such railway servant a statement in writing signed by such owner or person or by such consignee or endorsee, as the case may be, containing such description of the goods as would enable the railway servant to determine the rate for such carriage.

(2) If such owner or person refuses or neglects to give the statement as required under Sub-section (1) and refuses to open the package containing the goods, if so required by the railway servant, it shall be open to the railway administration to refuse to accept such goods for carriage unless such owner or person pays for such carriage the highest rate for any class of goods ;

(3) If the consignee or endorsee refuses or neglects to give the statement as required under the Sub-section (1) and refuses to open the package containing the goods, if so required by the railway servant, it shall be open to the railway administration to charge in respect of the carriage of the goods the highest rate for any class of goods.

(4) If the statement delivered under sub-section (1) is materially false with respect to the description of any goods to which it purports to relate, the railway administration may charge in respect of the carriage of such goods such rate, not exceeding double the highest rate for any class of goods as may be specified by the Central Government.